



DEPARTMENT OF HUMAN SERVICES

Adoption Intermediary Commission

ADOPTION CONFIDENTIAL INTERMEDIARIES

12 CCR 2515-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Addition of Section 15.100 were final adoption following publication at the 2/5/2013 Adoption Intermediary Commission meeting, with an effective date of 4/1/2013 (Rule-making# AIC 12-11-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Enterprise Partnerships, Division of Boards and Commissions, State Board Administration.

15.100 ADOPTION INTERMEDIARY COMMISSION [Eff. 4/1/13]

- A. The Adoption Intermediary Commission will maintain an up-to-date list of all of the persons who have completed training as Colorado confidential intermediaries, as persons who conduct searches for child placement agencies, or child placement agencies conducting searches.
- B. The Adoption Intermediary Commission will provide this list to the judicial department on an annual basis.
- C. Rules that describe when and under what conditions the name of a confidential intermediary, a person who conducts searches for child placement agencies, or child placement agencies conducting searches shall be removed from the list that is available to the judicial department.
 - 1. Failure to maintain confidentiality of information.
 - 2. Failure to be able to work with all persons, regardless of differing cultural or ethnic backgrounds.
 - 3. Failure to work cases in a confidential and timely manner.
 - 4. Failure to follow specific procedures in conducting searches on behalf of the petitioners:
 - a. Proper documentation of all phases of the search;
 - b. Maintain the anonymity of all parties;
 - c. Confidentiality of all information until voluntary, informed, and written consent for contact has been received by the court;
 - d. Upon conclusion of the case, all records, including all copies, must be returned to the Chief Confidential Intermediary, who will close the case with the court;
 - e. The Intermediary shall provide to the petitioner a statement of services rendered without violating the confidentiality.
 - 5. Failure to respect the privacy of all parties.

6. Failure to inform both the petitioner and the sought-after relative of the existence of the Voluntary Adoption Registry.
 7. Failure to sign an Oath of Confidentiality for each case.
 8. Failure to attend required training.
 9. Failure to comply with an order from a Court of Jurisdiction.
 10. Failure to comply with any applicable article or provision of the statute, rules, or manual of standards.
 11. Failure to remedy a complaint as directed by the Commission.
 12. Acceptance of fees without making a good faith attempt to locate the sought party.
- D. The standards set forth by the Adoption Intermediary Commission for training of confidential intermediaries, persons who conduct searches for child placement agencies, or child placement agencies conducting searches as found in The Adoption Intermediary Commission's Manual of Standards for Training Confidential Intermediaries (dated January 17, 1992) are incorporated in these rules by reference. No later amendments or editions are incorporated. Copies of these standards are available from the Colorado Department of Human Services, Child Welfare Division, 1575 Sherman Street, Denver, Colorado 80203, or at any State publications depository library.

Editor's Notes

History

Entire rule repealed eff. 06/01/2012.

Entire rule eff. 04/01/2013.